

TENTATIVE RULING

Case: **Bernal v. AUS Decking, Inc.**
 Case No. CV2024-0732

Hearing Date: **May 12, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Interstate Management Company, LLC v. Presidioco Holdings LLC et al.**

Case No. CV2025-1172

Hearing Date: **May 12, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Interstate Management Company, LLC's ("plaintiff") evidentiary objections to the declaration of Guneet Bajwa Nos. 4, 5, 6, 9, 11, and 12 are **OVERRULED** as the evidence objected to is relevant to the Court's determination of this motion. (Evid. Code, § 210, 350.) The Court declines to rule on the remaining evidentiary objections because the evidence objected to is not relevant to the disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).)

The Court declines to consider the supplemental declarations of Dana M. Silva and Cindy Landes filed by plaintiff on March 6, 2026. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538.)

Plaintiff's motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subds. (c), (p)(1).) "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) The Court finds that plaintiff has made a prima facie showing in support of its breach of contract cause of action against defendants Presidioco Holdings LLC ("Presidioco"), 110 F Street LLC ("110 F Street"), 2750 Cowell Hotel, LLC ("2750 Cowell Hotel") and 1020 West Capitol Hotel ("1020 West Capitol Hotel") (collectively, "defendants".) (UMF 1-14.) However, the Court further finds that defendants provided evidence raising a triable issue of material fact as to whether the addendum was negotiated in good faith. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252; see also Cal. Rules of Court, rule 3.1350(d)(2) ["The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion"]; UMF 5; Bajwa Decl., ¶¶ 6-8, 12, 14-15, Exhs. 4-6, 11-13.)

Plaintiff's motion for summary adjudication as to defendants Presidioco, 110 F Street, and 1020 West Capitol Hotel is **DENIED**. (Code Civ. Proc., § 437c, subds. (f)(1), (p)(1).) For the same reasons identified by this Court in denying plaintiff's motion for summary judgment, this Court finds that although plaintiff has made a prima facie case showing in support of its breach of contract cause of action as against Presidioco, 110 F Street, and 1020 West Capitol Hotel, defendants have provided evidence raising a triable issue of material fact as to whether the addendum was negotiated in good faith as to all defendants. (*Nazir, supra*, 178 Cal.App.4th at p. 252; Cal. Rules of Court, rule 3.1350(d)(2); UMF 18; Bajwa Decl., ¶¶ 6-8, 12, 14-15, Exhs. 4-6, 11-13.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.